

1. To submit an offer, please sign and initial all pages of this contract and send to _____. Once confirmation of offer is received you must deposit earnest money to the designated title company for your offer and contract to be complete.

2. Escrow company will contact you to provide deposit instructions

3. Buyer understands and agrees that failure to submit earnest money deposit by deadline voids the purchase of the property mentioned.

4. The undersigned agrees that by signing below you agree that you have read, understand, and have full power and authority to enter into this legal agreement. If you do not understand this document, please seek legal counsel prior to signing, the undersigned acknowledges receipt of a copy of this document.

- There is no financing contingency. This opportunity is for "cash" buyers only. If using a hard money lender or an IRA, a proof of funds is required at time of acceptance.
- All properties are sold As-Is where is. Ensure you verify all facts and estimates through your own vendors.
- This is a legally binding contract. Buyer must have performed **ALL** due diligence prior to signing contract. Assignor does not guarantee any walkthroughs of property after this contract has been signed and prior to completing escrow.
- Buyer understands that this contract is **non-cancellable**. Assignor has the right to pursue legal action, specific performance and punitive damages to enforce contract. Sacrificing earnest money deposit does not release buyer from closing on property.
- Assignor has an assignable purchase contract on this property. We are investors exploring the possibility of assigning our purchase contract on this property. Buyer understands that even though this contract is between Assignor and the buyer, if an assignment is used the buyer is simply purchasing a contract from Assignor. All deals and offers are subject to Assignor getting marketable title.
- Offer is not considered accepted until signed by Buyer & Assignor.

5. THIS LEGALLY BINDING ASSIGNMENT of Contract is made by:

(Seller or "Assignor") and:

BUYER: _____
(Buyer or "Assignee")

For the sale or assignment of the property described below:

ADDRESS:

PURCHASE PRICE:

EARNEST MONEY: _____ Due to Closing Agent/Office Within 48 hours of acceptance

CLOSING DATE: On or before: _____

CLOSING AGENT/OFFICE:

6. WHEREAS, Assignor desires to assign, transfer, sell and convey to Assignee all of Assignor's right, title and interest in, to and under said Real Estate Purchase and Sale Agreement, and **NOW, THEREFORE** in consideration Assignee agrees to pay a total amount of purchase price listed above and other good and valuable considerations, the sufficiency of which is hereby acknowledged, Assignor has assigned, transferred, sold and conveyed unto Assignee all of Assignor's right, title, and interest to their Real Estate Purchase and Sale Agreement. Assignor is to receive their compensation at closing in the form of assignment fee.

7. **EARNEST MONEY:** Assignee is to pay an Earnest Money Deposit as specified above by way of **non-refundable** check, money order or wire transfer made payable to designated title company. Deposit money will be credited to the final sales price at time of closing. Deposit will be returned to Assignee upon Assignor default or inability to close. Deposit will be released to Assignor upon Assignee Default or inability to close, and Assignee/Buyer gives express consent to release funds to Assignor upon default or cancellation without a signed release of escrow agreement. This property will still be marketed to other buyers until deposit is received by escrow. If another buyer places deposit, this contract is null or void. If this agreement is executed as designated, Assignee hereby releases Assignor from any and all liability and specific performance, to include any cost incurred by Assignee.

8. **ATTORNEY FEES AND PROVISION:** In the event of litigation arising from breach of this agreement, or the services provided under this agreement, the prevailing party shall be entitled to recover from the non-prevailing party all reasonable cost including staff time, court cost, attorney's fees and all other related expenses incurred in such litigation including the enforcement of any resulting judgement.

9. **TIME IS OF THE ESSENCE:** Buyer agrees to comply with all deadlines and complete the purchase of the property on or before the close date. Assignee agrees to allow Assignor to keep a sign in the front yard of property for up to 30 days after closing as reciprocal marketing. This Assignment contract is non-assignable without express written consent of **ASSIGNOR**. No changes to be made to purchase contract without express written consent of **ASSIGNEE**.

10. **ASSIGNMENT OF DUTIES:** Assignee hereby assumes all of Assignor's duties and obligations under said contract for The Sale & Purchase of Real Estate. Assignee agrees to perform all covenants, conditions and obligations required by Assignor under said Agreement and agree to defend, indemnify and hold Assignor harmless from any liability or obligation under said Agreement. Assignee further agrees to hold Assignor harmless from any deficiency or defect in the legality or enforceability of the terms of said agreement.

11. **DISCLOSURE:** A valid purchase and sale agreement was signed with the seller(s) of the property. Assignee agrees and understands that Assignor is not acting as a real estate broker/agent in this transaction and is not representing either party, but rather acting as a principal in selling their interest in the above referenced contract to Assignee.

12. Buyer will have a 5-day feasibility period from effective date for due diligence to complete a wildlife assessment, at Buyer's expense.

13. Buyer to pay for Owner's Policy and Charges and charges for closing services related to Buyer's lender's policy, endorsements and loan closing.

14. **THIS IS INTENDED TO BE A LEGALLY BINDING CONTRACT. IF NOT FULLY UNDERSTOOD, SEEK THE ADVICE OF AN ATTORNEY PRIOR TO SIGNING.**

_____ Buyer (Assignee) Signature	_____ Date	_____ Assignor	_____ Date
_____ Print Name		_____ Print Name	
_____ Buyer (Assignee) Signature	_____ Date		